



OFFICE OF THE POLICE COMMISSIONER

ONE POLICE PLAZA • ROOM 1400

October 11, 2010

Memorandum for:

Deputy Commissioner, Trials

Re:

Police Officer Colon, Ricardo

Tax Registry No. 914725

Bronx Court Section

Disciplinary Case Nos. 81454/05, 83093/07 & 84621/08

CHAN

The above named member of the service appeared before Assistant Deputy Commissioner John Grappone on March 2, 2010 and was charged with the following:

DISCIPLINARY CASE NO. 81454/05

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, on or about April 10, 2005, while off-duty in Bronx County, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Officer refused to immediately return to the scene of an accident where he unknowingly ran over the foot of an individual, known to the Department, after he was requested to do so by the responding officer to said accident.

P.G. 203-10, Page 1, Paragraph 5

GENERAL REGULATIONS

DISCIPLINARY CASE NO. 83093/07

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, on or about and between January 5, 2006 and May 15, 2006, while on duty and assigned to perform a tour of 0737 hours by 1600 hours, was absent from said assignment on six (6) separate occasions without permission or police necessity for a total of twenty-four (24) hours and thirty (30) minutes on the following dates and times:

January 5, 2006 from 1145 hours to 1600 hours

January 19, 2006 from 1100 hours to 1600 hours

January 27, 2006 from 1145 hours to 1600 hours

February 2, 2006 from 1100 hours to 1600 hours

March 15, 2006 from 1215 hours to 1600 hours

May 15, 2006 from 0745 hours to 1005 hours (As amended)

P.G. 203-05, Page 1, Paragraph 2

PERFORMANCE ON DUTY

GENERAL REGULATIONS

P.O. RICARDO COLON

DISCIPLINARY CASE NOS. 81454/05; 83093/07; 84621/08

2. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, on or about February 13, 2006 and March 27, 2006, while on duty and assigned to perform a tour of 2337 hours by 0800 hours, was absent from said assignment on three (3) separate occasions without permission or police necessity for a total of five (5) hours and five (5) minutes on the following dates and times:

February 13, 2006, from 0615 hours to 0800 hours

March 2, 2006 from 0625 hours to 0800 hours

March 27, 2006 from 0615 hours to 0800 hours

P.G. 203-05, Page 1, Paragraph 2

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

3. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, on or about September 5, 2006, while on duty and assigned to perform a tour of 0700 hours by 1523 hours, was absent from said assignment without permission or police necessity from 0700 hours to 1523 hours.

P.G. 203-05, Page 1, Paragraph 2

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

4. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, while on duty on or about the dates indicated in Specification No. 1, Specification No. 2 and Specification No. 3, did wrongfully cause false entries to be made in Department records on nine (9) occasions, to wit, said Police Officer caused entries to be placed in the Command Log that indicated he went to the Department Medical Division and/or Department authorized physical therapy, when, in fact, he did not appear at said location. (As amended)

P.G. 203-05, Page 1, Paragraph 4

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

DISCIPLINARY CASE NO. 84621/08

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, while on sick report, on or about June 10, 2008, did wrongfully cause false entries to be made in Department records, to wit, said Police Officer called the Absence Control Division at approximately at 0850 hours and stated that he was going to the pharmacy when in fact, he did not go to said location until 1215 hours.

P.G. 203-05, Page 1, Paragraph 4

**PERFORMANCE ON DUTY
GENERAL REGULATIONS**

P.O. RICARDO COLON

DISCIPLINARY CASE NOS. 81454/05; 83093/07; 84621/08

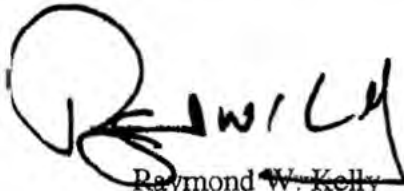
2. Said Police Officer, Ricardo Colon, assigned as indicated in Specification No. 1, on or about June 10, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Officer made false and misleading statements to Sergeant Charles Garguilo of the Absence Control and Investigations Unit when he stated that he was in a pharmacy for approximately two (2) hours waiting for a prescription to be processed when, in fact, that was not true.

P.G. 203-10, Page 1, Paragraph 5

**PROHIBITED CONDUCT
GENERAL REGULATIONS**

In a Memorandum dated June 29, 2010, Assistant Deputy Commissioner Grappone found Respondent Colon Not Guilty of Specification No. 1 in Disciplinary Case No. 81454/05 and Guilty In-Part and Not Guilty In-Part of Specification No. 1, Not Guilty of Specification Nos. 2 and 4 and Dismissed Specification No. 3 in Disciplinary Case No. 83093/07, and Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 84621/08. Having read the Memorandum and analyzed the facts of these instant matters, I approve the findings, but disapprove the recommended penalty.

The Respondent's misconduct and falsities subverted the Department's sick-leave and physical therapy-leave policies and reporting requirements. Such is highly prejudicial to the good order, efficiency or discipline of the Department. Therefore, in addition to the forfeiture of 30 Vacation days, Respondent Colon is to be DISMISSED from the New York City Police Department; however, this penalty of dismissal will be held in abeyance pursuant to Section 14-115 (d) of the NYC Administrative Code for a period of one year, during which time the Respondent will remain on the force at the Police Commissioner's discretion and may be terminated at any time without a further hearing.



Raymond W. Kelly
Police Commissioner



POLICE DEPARTMENT

June 29, 2010

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ricardo Colon
Tax Registry 914725
Bronx Court Section
Disciplinary Case Nos. 81454/05, 83093/07 & 84621/08

The above-named member of the Department appeared before the Court on December 7, December 8, 2009, January 19, and March 2, 2010, charged with the following:

Disciplinary Case No. 81454/05

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, on or about April 10, 2005, while off-duty in Bronx County, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: Said Officer refused to immediately return to the scene of an accident where he unknowingly ran over the foot of an individual, known to the Department, after he was requested to do so by the responding officer to said accident.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

Disciplinary Case No. 83093/07

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, on or about and between January 5, 2006 and May 15, 2006, while on duty and assigned to perform a tour of 0737 hours by 1600 hours, was absent from said assignment on six (6) separate occasions without permission or police necessity for a total of twenty-four (24) hours and thirty (30) minutes on the following dates and times:

January 5, 2006 from 1145 hours to 1600 hours
January 19, 2006 from 1100 hours to 1600 hours
January 27, 2006 from 1145 hours to 1600 hours
February 2, 2006 from 1100 hours to 1600 hours
March 15, 2006 from 1215 hours to 1600 hours
May 15, 2006 from 0745 hours to 1005 hours (*As amended*)

COURTESY • PROFESSIONALISM • RESPECT

P.G. 203-05 Page 1, Paragraph 2 – PERFORMANCE ON DUTY GENERAL
REGULATIONS

2. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, on or about February 13, 2006 and March 27, 2006, while on duty and assigned to perform a tour of 2337 hours by 0800 hours, was absent from said assignment on three (3) separate occasions without permission or police necessity for a total of five (5) hours and five (5) minutes on the following dates and times:

February 13, 2006, from 0615 hours to 0800 hours

March 2, 2006 from 0625 hours to 0800 hours

March 27, 2006 from 0615 hours to 0800 hours

P.G. 203-05 Page 1, Paragraph 2 – PERFORMANCE ON DUTY GENERAL
REGULATIONS

3. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, on or about September 5, 2006, while on duty and assigned to perform a tour of 0700 hours by 1523 hours, was absent from said assignment without permission or police necessity from 0700 hours to 1523 hours.

P.G. 203-05, Page 1, Paragraph 2 – PERFORMANCE ON DUTY GENERAL
REGULATIONS

4. Said Police Officer Ricardo Colon, assigned as indicated in Specification No. 1, while on duty on or about the dates indicated in Specification No. 1, Specification No. 2 and Specification No. 3, did wrongfully cause false entries to be made in Department records on nine (9) occasions, to wit, said Police Officer caused entries to be placed in the Command Log that indicated he went to the Department Medical Division and/or Department authorized physical therapy, when, in fact, he did not appear at said location. (*As amended*)

P.G. 203-05, Page 1, Paragraph 4 – PERFORMANCE ON DUTY GENERAL
REGULATIONS

Disciplinary Case No. 84621/08

1. Said Police Officer, Ricardo Colon, assigned to the Bronx Court Section, while on sick report, on or about June 10, 2008, did wrongfully cause false entries to be made in Department records, to wit, said Police Officer called the Absence Control Division at approximately at 0850 hours and stated that he was going to the pharmacy when in fact, he did not go to said location until 1215 hours.

P.G. 203-05 Page 1, Paragraph 4 – PERFORMANCE ON DUTY-GENERAL

2. Said Police Officer, Ricardo Colon, assigned as indicated in Specification No. 1, on or about June 10, 2008, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Officer made false and misleading statements to Sergeant Charles Garguilo of the Absence Control and Investigations Unit when he stated that he was in a pharmacy for approximately two (2) hours waiting for a prescription to be processed when, in fact, that was not true.

P.G. 203-10 Page 1, Paragraph 5 – PROHIBITED CONDUCT-GENERAL
REGULATIONS

The Department was represented by Beth Douglas, Esq., Department Advocate's Office, and the Respondent was represented by Michael Martinez, Esq. and Cary London, Esq.

The Department moved to dismiss Specification No. 3 of Disciplinary Case No. 83093/07. The Respondent, through his counsel, entered a plea of Not Guilty to the remaining charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 81454/05

The Respondent is found Not Guilty.

Disciplinary Case No. 83093/07

The Respondent is found Not Guilty of Specification Nos. 2 and 4. He is found Guilty in part and Not Guilty in part of Specification No 1. It is recommended that the Department's motion to dismiss Specification No. 3 be granted.

Disciplinary Case No. 84621/08

The Respondent is found Guilty as charged.

SUMMARY OF EVIDENCE PRESENTEDThe Department's Case

The Department called Sergeant Charles Garguilo, Lieutenant Aldia Hudnell, Detective Diane Bolte, Lieutenant Dominick Valenti, Police Officer Christopher Tenore, and Sergeant Thomas Bruen as witnesses.

Sergeant Charles Garguilo

Garguilo, a 19-year member of the Department, is currently assigned to the Medical Division Absence Control and Investigations Unit. He testified that at approximately 11:35 a.m. on June 10, 2008, he was conducting a supervisory visit to the Respondent's residence, where he was informed by the doorman that the Respondent had left early that morning. Garguilo notified Lieutenant Dominick Valenti, the commanding officer of the Absence Control and Investigations Unit, and they looked to see if the Respondent had been entered in the out of residence log. The log indicated that the Respondent had left his residence to go to the pharmacy.

Garguilo explained that because the Respondent was on modified duty status and on sick leave at the time, he was required to remain at home except during the hours for which he had been given a pass. The Respondent had a pass to go out of residence between 2:00 p.m. and 6:00 p.m. If the Respondent needed to go out of residence at any time outside of that four-hour period, he was required to get permission from the Sick Desk before leaving home, have the location of his destination entered in the out of residence log, and then notify the Sick Desk again upon returning home.

At approximately 11:50 a.m., Garguilo called the Respondent on his cell phone. The Respondent told Garguilo that he was at the Highbridge Pharmacy waiting for a prescription to be filled and that he had been waiting there for a couple of hours. At Valenti's instruction, Garguilo went to the pharmacy to look for the Respondent. Garguilo arrived at the pharmacy at approximately 1:00 p.m. Garguilo asked the pharmacist if he had seen the Respondent. The pharmacist told Garguilo that the Respondent called in a prescription at approximately 12:07 p.m. and picked it up approximately eight minutes later. According to the pharmacist, the Respondent had not been waiting around for a prescription earlier in the day. According to the out of residence log, however, the Respondent left his home that day at 8:52 a.m. to go to the pharmacy and did not return home until 1:45 p.m. [Department's Exhibit (DX) 2 is copy of the out of residence log records for the Respondent.]

On cross-examination, Garguilo testified that he visited the Respondent at home on several occasions, and June 10, 2008 was the first time that there was a problem. He reiterated that the Respondent had a pass to be out of residence between the hours of 2:00 p.m. and 6:00 p.m. Garguilo did not have in his case folder a copy of the pass or any sort of document that confirmed those hours. He stated that passes are usually for four hours, and he did not recall the Respondent ever having a longer pass. A member of the service who has an out of residence pass does not need to call the Sick Desk when leaving home during the pass hours. When not during pass hours, though, the member must call the Sick Desk. The police officer at the Sick Desk who answers the telephone will enter in the computer the time and the location of the sick member's destination. Garguilo was not the person who answered the Respondent's calls to the Sick Desk, and he cannot

vouch for those who did answer them. If the Respondent stated in a call that he was going to the pharmacy, then to pick up his dry cleaning, and then to get something to eat, the officer at the Sick Desk should have entered in the computer all of the destinations. In the out of residence log records for the Respondent, each call indicates only one destination. Garguilo interpreted this to mean that the Respondent requested to leave home for just one reason each time he called. He conceded, however, that since he did not take the calls, he could not know for certain whether the Respondent gave one or more destinations on each call.

Garguilo testified that he commonly hears complaints about people having difficulty reaching the Sick Desk on the telephone. There are times of the day when the desk is very busy, and a caller will get a busy signal. He has heard people complain about waiting more than 15 minutes to get through, but he does not believe that it could really take that long. Garguilo stated that it would be inappropriate for a member of the service to call the Sick Desk at 9:00 a.m. and state that he was going to the pharmacy if, in fact, the member did not plan on leaving for the pharmacy until 10:00 a.m. Garguilo explained that such a telephone call would cause a false entry to be made in the log.

According to Garguilo, if a member is trying to call the Sick Desk for more than 15 minutes and still cannot get through, the member could call his command to let it know where he is going and then try again to call the Sick Desk at a later time. Also, according to Garguilo, no supervisor would ever deny a sick member of the service permission to go to the doctor or the pharmacy. He explained that there is a list of things that a sick member is allowed to do and another list of things that should be denied. There are some things that are not on either list, and these situations require the officer at

the Sick Desk to decide whether or not the sick member should be granted permission to leave home. A member who is out of residence must call back in to the Sick Desk as soon as he returns home. There have been occasions where a member has returned home and forgotten to notify the Sick Desk.

Garguilo testified that he did not recall the Respondent telling him on the day of the incident that he (the Respondent) had had trouble getting through to the Sick Desk. Garguilo conducted an official Department interview of the Respondent on July 7, 2008. Garguilo did not recall the Respondent telling him at any point that he had gone to the pharmacy but he did not have his prescription bottle so he had to go and get it. According to Garguilo, because the Respondent was out of residence outside of the pass hours, he was supposed to go to the pharmacy as soon as he called the Sick Desk and then return home as soon as he was finished at the pharmacy. The Respondent called to say he was home at 1:45 p.m.

On redirect examination, Garguilo testified that if a sick member of the service cannot get through to the Sick Desk, he should keep trying the number, so long as it is not an emergency situation. He reiterated that if the member can still not get through to the Sick Desk after 15 minutes of trying, the member has the option of calling his command and getting his time and location documented there. He explained that it is important to have this information documented for accountability. The Department must know where a member out on sick report is located at all times. In his ten years at the Medical Division, Garguilo has never heard of a member calling ahead to the Sick Desk in order to avoid calling in at a busy time later in the day. At the official Department interview,

the Respondent told Garguilo that he could not recall where he was during the time in question.

On recross-examination, Garguilo testified that according to the Patrol Guide, a sick member is not allowed to leave his residence unless he is granted permission from the Sick Desk.

Lieutenant Aldia Hudnell¹

Hudnell, an 18-year member of the Department, is currently assigned to the Brooklyn North Investigation Unit. In 2006 or 2007, while assigned to the Criminal Justice Bureau Investigations Unit, she was involved in an investigation into apparent discrepancies with the Respondent's physical therapy visits. As part of her investigation, Hudnell collected roll calls, command logs, and any medical documentation that could place the Respondent at the location he claimed to be. The dates in question ran from January through May of 2006.

One of the dates in question was January 5, 2006. For that day, Hudnell collected the Bronx Court Section (BCS) roll call and command log. She also collected the Medical Division's orthopedic appointment book, the orthopedic sign-in sheet, the medical district sign-in sheet, a physical therapy bill, the physical therapy sign-in sheet, and a health insurance claim form. [DX 3 consists of copies of all these documents for January 5, 2006.] On that day, the Respondent was scheduled to work a 7:37 a.m. by 4:00 p.m. tour. On the BCS roll call, there was a handwritten change that the Respondent's post was changed to the Medical Division at One Lefrak in Queens² from

¹ At the time that Hudnell was investigating this disciplinary matter, her surname was Lebron-Forestier.

² The Medical Division was also referred to as simply "Lefrak" in testimony.

11:35 a.m. until the end of tour. This post change was also documented in the BCS command log. According to the orthopedic and medical district sign-in sheets at the Medical Division, however, there was no indication of the Respondent ever being there. Similarly, there was no evidence in the appointment book of the Respondent being scheduled for an appointment. While Hudnell found no evidence of the Respondent being at the Medical Division, she uncovered that the Respondent received physical therapy in Co-op City in the Bronx that day. A physical therapy bill indicates that he received electrical stimulation and therapeutic hot and cold packs. In addition, the Respondent's name appears on the physical therapy sign-in sheet. Hudnell testified that the Respondent should have informed roll call ahead of time of the physical therapy appointment. And, if the appointment was made at the last minute, the Respondent should have informed a supervisor where he was going.

On January 19, 2006, the Respondent was again scheduled to work a 7:37 a.m. by 4:00 p.m. tour. On the roll call, there was a typewritten change that the Respondent's post was changed to the Medical Division at 10:45 a.m. Hudnell testified that the fact that this change was typewritten indicated that the Respondent had notified roll call personnel beforehand, as required. The BCS roll call recap also indicated that the Respondent was post changed to the Medical Division at 10:45 a.m. Meanwhile, the BCS command log indicated that he was post changed to the Medical Division at 11:00 a.m. and ended his tour there at 4:25 p.m. The Respondent did not sign in that day at the Medical Division and he was not scheduled for an appointment there. According to Hudnell, these Department records show that the Respondent did not go to the Medical Division on that day. She testified that his physical therapy paperwork shows that the

Respondent did get physical therapy, but he went during the afternoon session, which takes place between 1:00 p.m. and 5:00 p.m. His whereabouts during the morning are, therefore, unknown. The Respondent did sign in at the Medical Division at 9:00 a.m. the following day. Police officers must get authorization at Lefrak to receive physical therapy in Co-op City. [DX 4 consists of copies of the BCS roll call, roll call recap, and command log; the Medical Division's sign-in sheet and orthopedic appointment book; and a bill, sign-in sheet, and health insurance claim form for physical therapy, all for January 19, 2006. DX 4 also contains the sign-in sheet to see Chief Surgeon, Doctor Reich on January 20, 2006. It shows that the Respondent signed in at 9:00 a.m. on that day.]

Hudnell explained that every police officer is supposed to be accounted for during work hours. On January 5 and 19, the Respondent had been given permission from BCS to go to the Medical Division, not to go to physical therapy. The Respondent would have been entitled to go to physical therapy had he asked for it. Because he did not ask beforehand, however, the Department did not know where he was located. When an officer is set to be in one place and then goes someplace else, that officer is off post. According to Hudnell, if the Respondent knew when he signed in that the roll call mistakenly indicated him going to the Medical Division, he should have notified a supervisor.

On January 27, 2006, the Respondent was scheduled to work a 7:37 a.m. by 4:00 p.m. tour. On the roll call, there was a handwritten change that the Respondent's post was changed to a doctor's office on East 88 Street at 11:45 a.m. In addition, the roll call recap indicated that his post was changed to a doctor's office at 11:45 a.m., and the roll

call indicated that his tour ended from the doctor's office at 4:30 p.m. Hudnell learned in her investigation that the Respondent was scheduled that day to see a Doctor Liu at Park East Sports on East 88 Street to get epidural shots. When Hudnell spoke to the receptionist at the doctor's office, though, she was told that the Respondent did not appear for his appointment. In her investigation, Hudnell found no indication that the Respondent went to the Medical Division or physical therapy. She testified that she could not determine where the Respondent went that day. [DX 5 consists of copies of the BCS roll call and roll call recap; the Park East Sports appointment list; the Medical Division sign-in sheet; and a health insurance claim form, all for January 27, 2006.]

According to the command log for February 2, 2006, the Respondent was post changed at 8:00 a.m. to East 88 Street. According to the roll call, however, he went end of tour at 4:00 p.m. from physical therapy. Hudnell testified that the Respondent went that morning to see a Doctor Camins on East 88 Street (which he was authorized to do), but he then went to physical therapy without informing a supervisor. Hudnell explained that the Respondent should have submitted his appointments to roll call personnel beforehand and gotten approval for both the doctor's visit and the physical therapy visit. [DX 6 consists of copies of the BCS roll call, roll call recap, and command log; the Medical Division sign-in sheet; the physical therapy sign-in sheet; and a health insurance claim form, all for February 2, 2006. It also contains a copy of a letter from Camins, dated May 18, 2006. Camins stated in the letter that he saw the Respondent for a neurosurgical consultation on the date in question.]

According to the roll call for March 15, 2006, the Respondent was post changed at 9:45 a.m. to the Medical Division, and he called the command at 5:05 p.m. to sign out

from physical therapy. While the Medical Division sign-in sheet indicates that the Respondent was present there from 11:15 a.m. until 12:15 p.m., billing records do not show the Respondent being billed for any therapy treatment on that day. [DX 7 consists of copies of the BCS roll call, roll call recap, and command log; the Medical Division sign-in sheet; and a bill, verification form, and health insurance claim form for physical therapy, all for March 15, 2006.]

According to the May 15, 2006 roll call, the Respondent was post changed at 7:45 a.m. to physical therapy. Hudnell testified that there is no indication, however, that the Respondent was billed for any therapy treatment on that day. The Respondent returned to the command at 10:05 a.m. [DX 8 consists of copies of the BCS roll call, roll call recap, and command log; and a health insurance claim form, all for May 15, 2006.]

On February 13, 2006, the Respondent began his tour at 11:37 p.m. The roll call indicates that his post was changed to physical therapy at 6:15 a.m. According to Hudnell, however, records do not show the Respondent receiving any physical therapy on that day. Instead, he received chiropractic therapy, something for which he did not have authorization. [DX 9 consists of copies of the BCS roll call and command log; a physical therapy bill; and a sign-in sheet for Co-Op City Chiropractic, all for February 13, 2006]

Hudnell testified that although the March 2, 2006 roll call shows that the Respondent's post was again changed to physical therapy at 6:15 a.m., he was not billed for physical therapy services for that day. [DX 10 consists of copies of the BCS roll call and command log; and a physical therapy verification form, bill, and health insurance claim form, all for March 2, 2006.]

Hudnell testified that although the March 27, 2006 roll call shows that the Respondent ended his tour from physical therapy at 8:50 a.m., he was not billed for physical therapy services for that day. [DX 11 consists of copies of the BCS roll call and command log (which shows that the Respondent's post was changed to physical therapy at 6:15 a.m.); and a physical therapy verification form and health insurance claim form, all for March 27, 2006.]

Hudnell testified that during the course of her investigation, she asked the Respondent for any documentation that showed he was at the locations where he was supposed to be. At no point did he provide her with anything.

On cross-examination, Hudnell conceded that it was possible that the Respondent attended physical therapy on a certain date and for some reason the billing department did not submit for it. Hudnell did not know of any instance where the Respondent requested to go to physical therapy and was denied. Similarly, she did not know of any instance where the Respondent requested to go to the Medical Division and was denied, but she clarified that a denial would not have been documented. As part of her investigation, Hudnell interviewed the BCS integrity control officer (ICO), Lieutenant Kelly. Kelly himself did not make any of the log entries relevant to this case. The supervisors who did make the log entries would have written whatever information they were told by the Respondent. When Hudnell questioned the Respondent about the incidents months later, the Respondent could not identify the specific supervisors with whom he spoke on the dates in question.

Hudnell testified that the Respondent should have submitted ahead of time the dates and times of his physical therapy appointments. If the Respondent went to an

authorized therapy appointment and found that the scheduled treatment could not be performed that day, he should have gone back to work or submitted a Leave of Absence Report for the rest of the day. Using February 13, 2006 as an example, Hudnell agreed that if the Respondent had told a supervisor that he was going to physical therapy, traveled to the therapy location, and then returned to the command after being informed that the therapy could not be performed, the Respondent would not have done anything wrong that day. Nor would a physical therapy bill have been generated. Again, using the February 13, 2006 date, Hudnell explained that the Respondent was authorized for physical therapy on that day but received chiropractic services instead. Although the Respondent had not specifically received authorization for chiropractic services, the chiropractor was located at the same location as the physical therapy.

According to the roll call for September 5, 2006, the Respondent started his tour from physical therapy at 7:00 a.m. The fact that this information was typewritten indicates that the Respondent had informed roll call personnel about a physical therapy appointment beforehand. According to the billing records, however, the Respondent did not receive physical therapy services on that day. For this reason, Hudnell substantiated a charge that the Respondent was absent from his assignment on September 5, 2006. She testified that had the Respondent provided her earlier with documentation showing that he was at the hospital for pre-operation preparation, she would not have substantiated the charge that he was absent from his assignment on that day. The Respondent was, nevertheless, responsible for giving the Department his proper location. Hudnell explained that wherever a member of the service claims to be located is where that member should actually be located. She conceded that she has no idea why the

Respondent would say he was going to physical therapy on a day that he was actually going to the hospital. The Respondent would not have made roll call or command log entries himself. The dates for which the Respondent has been accused of being absent from his assignment are only a fraction of the total on-duty physical therapy appointments that he had.

Hudnell reiterated that the roll call for January 19, 2006 indicated that the Respondent was post changed to the Medical Division. During the course of her investigation, Hudnell learned that the Respondent did not go to the Medical Division, but went instead to the afternoon session of physical therapy. Hudnell testified that she, therefore, substantiated that the Respondent was absent from his assignment on that day. Hudnell does not know who in the roll call office the Respondent told that he was going to the Medical Division.

A member of the service who has sustained a line-of-duty injury can go to physical therapy, the Medical Division, or any doctor's appointment while on duty, so long as the visit has been authorized. Authorization for physical therapy is granted by a Department surgeon. Hudnell has not heard whether the authorization form needs to be an original copy or if it can be faxed. Similarly, she knows of no rule that would prohibit a member from going to the Medical Division to pick up an authorization form on the way to physical therapy. In that situation, though, the member is supposed to get prior approval to go to both the Medical Division and physical therapy. Furthermore, the supervisor from whom he got the approval would note both destinations in log entries. Hudnell never spoke to any of the supervisors that might have made log entries in the

Respondent's case. It is not a police officer's responsibility to check if the entries made by a supervisor were accurate.

As with physical therapy, if a member who has sustained a line-of-duty injury wants to see an outside doctor while on duty, he must get approval from the Department surgeon. The Respondent received authorization to see Camins from a Department surgeon, either Miller or Reich. Hudnell testified that the billing department at the Medical Division does not have a sign-in book. It would, therefore, be difficult to go back a couple of years and figure out when somebody visited there. Hudnell knows of no rule that would prohibit a supervisor from granting an officer with a line-of-duty injury permission to go to the billing department while on duty.

Detective Diane Bolte

Bolte, a 26-year member of the Department, is currently assigned to the Criminal Justice Bureau Investigations Unit. She took over the investigation of the Respondent's case after Hudnell was promoted and transferred out of the unit. She was present when Hudnell interviewed the Respondent for the first time and asked him to provide any evidence of his whereabouts on the dates in question. At no point did he submit documentation to the Investigations Unit, but he did subsequently provide documents to the Department Advocate's Office. As part of her investigation, Bolte obtained subpoenas to certain locations that the Respondent had visited.

Bolte testified that although the January 5, 2006 roll call indicated that the Respondent was post changed to the Medical Division from 11:35 a.m. and ended his tour there at 4:00 p.m., there is no evidence that he actually went to the Medical Division

on that day due to the fact that “there were no appointments and no members seen.” An insurance bill does show, though, that the Respondent received chiropractic services from a Doctor Weintraub. The Respondent gave the Department Advocate’s Office a copy of his E-Z Pass statement, which showed that he went over the Triborough Bridge to Queens at 12:05 p.m. and came back over the bridge at 2:12 p.m. When asked in an official Department interview why he did not report back to BCS and finish his tour at the command, the Respondent stated that he could not “go back that far” and did not recall if he went directly to chiropractic services or physical therapy. Bolte explained that the Respondent received physical therapy and chiropractic services in Co-op City in the Bronx, which means that there was no reason for him to go over the Triborough Bridge. According to Bolte, the Respondent did not have authorization to receive chiropractic care on that day. She explained that a member can receive authorization for either physical therapy or chiropractic care, but not both at the same time. When a Department surgeon authorizes physical therapy or chiropractic care for a member of the service who has suffered a line-of-duty injury, any payment for treatment would be covered by Workers’ Compensation. According to the insurance paperwork for the Respondent’s chiropractic visit, however, the Respondent used his personal insurance (GHI) and paid a \$15.00 co-payment instead of going through Workers’ Compensation. Bolte, therefore, concluded that the chiropractic care that the Respondent received that day was not Department-related, and the Respondent should not have received it while on duty. Bolte testified that based on her revisit of the allegations relating to January 5, 2006, she was in agreement with Hudnell’s initial findings.

As for January 19, 2006, Bolte testified that again there was no record of the Respondent going to the Medical Division, but there was an insurance bill for chiropractic services. The Respondent's E-Z Pass statement showed that he went over the Triborough Bridge into Queens at 11:44 a.m. There is no indication of him crossing the bridge again until 8:08 a.m. the next day. At an official Department interview, the Respondent stated that "he came back the long way on January 19 to avoid paying the toll to go over the bridge." He also stated that he does not recall if he went that day to the billing department, physical therapy, or the chiropractor. Bolte testified that since the Respondent used GHI and paid his own co-payment at the chiropractor, it was not a Workers' Compensation case and the Respondent did not have authorization to receive chiropractic services while on duty.

Bolte testified that the Respondent stated in an official Department interview that on January 27, 2006 he sat in the waiting room in Liu's office mustering up courage to get an epidural shot, which he ended up never receiving. The Respondent also stated that "he ha[d] no idea what happened on [that] date."

Records for February 2, 2006 indicate that in addition to having a consultation with Camins and receiving physical therapy, the Respondent also received chiropractic services. The Respondent used GHI at the chiropractor.

Bolte testified that while log entries indicate that the Respondent was post changed to physical therapy between 6:00 a.m. and 8:20 a.m. on February 13, 2006, there was no bill for physical therapy or any record of him being at the Medical Division during that period. Bolte did obtain a GHI bill for chiropractic services for that day. The Respondent stated in an official Department interview that he was not sure if he

received chiropractic services instead of physical therapy while on Department time. Bolte reiterated that a member does not usually get authorization for physical therapy and chiropractic care at the same time. She explained that the Department does not really recognize chiropractic service as a form of therapy, and it would rather an injured member receive physical therapy over chiropractic care. Bolte stated that she received a letter from Weintraub at the Respondent's chiropractor's office. In the letter (which was dated May 19, 2008), Weintraub wrote that he had advised the Respondent that the chiropractic services did not qualify for Workers' Compensation.

Bolte testified that while log entries indicate that the Respondent was post changed to physical therapy between 6:15 a.m. and 10:10 a.m. on March 2, 2006, there was a GHI bill for chiropractic services. The Respondent stated in an official Department interview that he did not know if he received chiropractic services in addition to physical therapy. He also stated that his physical therapy sessions usually lasted 30 to 40 minutes and that he was calling from his residence when he called the command at 10:10 a.m. According to Bolte, it is never appropriate for a member of the service to call in end of tour from home. The Respondent should have called the command before leaving the physical therapist's office.

[DX 12 is a copy of GHI records for the Respondent. It indicates that the Respondent paid an \$18.00 co-payment to Weintraub for chiropractic services on January 5, January 19, February 2, February 13, and March 2, 2006.]

Bolte testified that Medical Division records show that the Respondent was present there from 11:15 a.m. until 12:15 p.m. on March 15, 2006, but the Respondent could not explain where he was located between the time he left the Medical Division

and the time he went end of tour at 5:05 p.m. There was no record of him receiving physical therapy and GHI did not bill him for chiropractic services.

Bolte testified that that while log entries indicate that the Respondent was post changed to physical therapy between 6:15 a.m. and 8:50 a.m. on March 27, 2006, there is no record of him receiving physical therapy or chiropractic services or of him being at the Medical Division. The Respondent told Bolte that he was at physical therapy on that day.

Bolte testified that that while log entries indicate that the Respondent was post changed to physical therapy between 7:45 a.m. and 10:05 a.m. on May 15, 2006, there is no record of him receiving physical therapy or chiropractic services or of him being at the Medical Division. The Respondent told Bolte that there is probably no record of physical therapy because the physical therapist did not show up at work on that day.

Bolte testified that she unsubstantiated an allegation of the Respondent committing misconduct on September 5, 2006. She explained that the Respondent had been post changed to physical therapy on that day, but documents submitted to the Department Advocate's Office showed that he had actually gone to Lenox Hill Hospital for pre-operative testing. She further explained that she unsubstantiated the allegation because the Respondent was able to submit paperwork showing that he was at the hospital, and there was a bill submitted to the Medical Division showing that he did have pre-operative testing on that day. [DX 1 consists of the Respondent's medical records from Lenox Hill Hospital, dated September 5, 2006, indicating that he was present in the hospital that day for pre-operation preparation and testing.] At no point during the investigation did the Respondent provide Bolte with proof that he had authorization to receive chiropractic treatment on the dates in question.

On cross-examination, Bolte testified that when she inherited the case from Hudnell, the charges against the Respondent had already been substantiated. Bolte reviewed Hudnell's work. She also reviewed the GHI bills, which came to light only after Hudnell had been transferred. Bolte ultimately determined that all of the charges should remain in effect, with the exception of the one that covered September 5, 2006. She explained that she recommended that the charge for September 5 be unsubstantiated because, even though the roll call and command log entries showed the Respondent going to physical therapy, there was documentation to confirm that he was at the hospital getting pre-operative care on that day, and the Medical Division had authorized him to be there. Bolte conceded that the Respondent might not have told the command that he was going to physical therapy. Instead, what probably happened was that the Respondent submitted that he had to go somewhere pertaining to his physical therapy, and whomever he told entered in the records that he was going to physical therapy. It is also possible that whomever the Respondent spoke to at the command just wrote "physical therapy" next to his name since he had been to physical therapy more than 200 times.

As for the allegations pertaining to other dates, Bolte recommended that they remain in effect "not [because the Respondent] didn't have a legitimate place to go, [but because of] the time that he took to go to those places." She continued, "Based on his [official Department interview] and the time that he spent at physical therapy, he was out of the command a very long time considering what he had to do."

Bolte testified that before the Respondent went to physical therapy he was supposed to submit to his ICO a list of appointment dates, where he was going, and who he was going to see. In addition, according to Bolte, it was the Respondent's

responsibility to ensure that roll call and command log entries concerning his location were correct. Furthermore, whenever the Respondent went from one location to another, he should have called and informed the command. According to Bolte, if it was written in the command log that the Respondent's post was changed to the Medical Division, the Respondent probably told the person who made the log entry that that was where he was going. Bolte agreed that "a major part of [the] investigation and the substantiation of [the] charges . . . was based on what was written down in the log book as to where [the Respondent] was [located]." Bolte, nevertheless, never attempted to identify and speak with any of the BCS members who had control over the logs and may have made the relevant entries.

Bolte testified that it is common practice not to give the subject of an investigation that much information about the allegations in advance of the official Department interview. The Respondent would, therefore, not have known beforehand which dates were in question. According to Bolte, the Respondent was very evasive about his whereabouts on all of the dates.

Bolte testified that when a police officer receives authorization from the Medical Division for physical therapy, the authorization is for 12 therapy sessions over a 90-day period. If the officer needs additional therapy treatments, he must go back to the Medical Division to renew the authorization. During the course of his career, the Respondent has been approved for at least 20 rounds of physical therapy. The Respondent was permitted to get the authorization paperwork while on duty. Bolte stated that the Department's orthopedic surgeons are responsible for reviewing requests for physical therapy. According to Bolte, before going to the Medical Division to get authorization, the

Respondent would have needed to make an appointment with one of the orthopedic surgeons, Reich or Doctor Miller.

Going back to January 5, 2006, Bolte testified the Respondent was charged with being absent from his assignment from 11:45 until 2:12 p.m. because there was no record of him being at the Medical Division during that period. As for the period after 2:12 p.m. (meaning, the period after he crossed back over the Triborough Bridge into the Bronx), the Respondent was charged with being away from his assignment because BCS records showed him as being at the Medical Division when he was, in fact, at physical therapy. The physical therapy records do not indicate specific times for the sessions. Bolte stated that the Respondent should have called the command and told them that he was going from one location to another. Bolte conceded that it would not have been inappropriate for a supervisor to tell the Respondent at the start of tour to handle what needed to get done at the Medical Division before going to physical therapy. At no point during the investigation did Bolte speak with any BCS supervisors about assignments they gave the Respondent.

On January 5, 2006, the Respondent submitted a request for authorization to see Camins. The request was submitted at Medical District 21, which is located in the Bronx. Bolte testified that the Respondent probably went to the Bronx medical district after he went to the Medical Division at Lefrak and realized that there was nobody there to see him about the authorization request. [The packet previously submitted as DX 3 contains a copy of the Respondent's authorization request.] Bolte stated that there were times that the Respondent went to the medical district in the Bronx, but BCS logs inaccurately indicated that he was going to Lefrak.

It would not have been inappropriate if the Respondent went to a physical therapy appointment and waited for a while before learning that the therapist would not be at work that day. As with the records for physical therapy, the records from the chiropractor do not indicate specific times of treatment. Bolte conceded that she, therefore, cannot know for certain if the Respondent received his chiropractic treatments after his tour ended. She explained that she made the assumption that he went to the chiropractor while on duty based on the amount of time that he was away from the command. Bolte stated,

If he was just getting physical therapy, he stated on his own it's only 30 to 40 minutes. There are times he was out of the command four, five, six hours. If you are just getting physical therapy, between travel time and your therapy session, maybe the most two hours. But when you're out command four, five, six hours, how do you justify not getting chiropractic services either or doing other things?

Bolte conceded, though, that it was conceivable that on February 13 and May 15, 2006, the Respondent went to a physical therapy appointment but could not see the therapist and then went to see the chiropractor once his tour ended. She does not know how long the Respondent would have waited in the physical therapy office before being informed that the therapist was unavailable. During the course of her investigation, Bolte never spoke to any of the Respondent's physical therapists. While she did speak to people at the chiropractor's office, she still did not know the specific times that chiropractic treatments were given to the Respondent.

On redirect examination, Bolte reiterated that on January 5, 2006 the Respondent crossed the Triborough Bridge into Queens at 12:05 p.m. and crossed back into the Bronx at 2:12 p.m. According to Bolte, assuming the Respondent went to the Medical Division

that day before going to physical therapy, he should have called the command before leaving the Medical Division and informed them that he was leaving one location and going to another. In total, the Respondent went to as many as four locations on that day (the Medical Division in Lefrak, the Bronx medical district, physical therapy, and the chiropractor), but the command knew of him going to only one place. When asked why the Respondent should have known to notify his command where he was at all times, Bolte replied, "I would believe it would be in training in the command, or just from obtaining information on procedures when you do get physical therapy. I guess it's just training and what you're told."

Lieutenant Dominick Valenti

Valenti, a 24-year member of the Department, is currently assigned to the Medical Division Absence Control and Investigations Unit. He testified that in June 2008, the Respondent had been on sick report for approximately four months. For the majority of that period, he had a pass to go out of residence between the hours of 12:00 p.m. and 8:00 p.m. On May 21, 2008, the pass hours were increased to 8:00 a.m. until 10:00 p.m., and on May 28, 2008, the pass hours were reduced to 2:00 p.m. until 6:00 p.m. According to Valenti, the Respondent would have been informed of the change in his pass hours by the clinic supervisor, Sergeant Smith, and he would have been further notified by any other supervisor who visited him at home.

Valenti testified that the out of residence log is a computerized log that is maintained at the Sick Desk to record requests made by sick officers to leave their homes outside of pass hours. During the day, there are generally two to six police officers

working at the Sick Desk. There are occasions when the Sick Desk telephone line is busy for extended periods of time, sometimes for a half an hour or longer depending on the time of day and the volume of calls. Valenti testified that if the Respondent called the Sick Desk on June 10, 2008 and found the line to be busy, he could have directly called the Absence Control and Investigations Unit, the Special Medical District, or the supervisor assigned to visit him at home. Valenti explained that the Respondent would have had access to these numbers because, in 2003 and 2004, the Respondent was Chronic Sick – Category B and was assigned to the Special Medical District. Valenti stated that he has never heard of a member of the service calling the Sick Desk hours in advance in order to avoid getting a busy signal at a later time.

Valenti testified that when a member of the service meets with a Department surgeon, there should be a record of it in the doctor's appointment book and sign-in log. If a member went to see the surgeon without having an appointment, there should still be a record of the visit in the sign-in log. According to Valenti, a member of the service needs to meet with a Department surgeon in order to get authorization for outside treatment. When asked about the process by which a police officer would handle a billing inquiry at the Medical Division, Valenti replied, "I can't imagine too many issues that would require the officer to report for a billing issue, unless they are directed by a supervisor to report to the billing unit." Billing inquiries can be handled over the telephone. When asked how a member of the service is required to account for his whereabouts on any given tour, Valenti replied, "You have to either account with where you're going with a supervisor directly, memo book entries, you have to report to a supervisor at the location that you're responding to, or in many cases . . . there is a sign-in

and sign-out log to account for your presence.” An officer going from the Medical Division to physical therapy should, therefore, call his command to let it know when he is leaving one location and going to another. This is because supervisors need to account for everybody that works for them.

On cross-examination, Valenti testified that if an officer were to call the Sick Desk at 10:00 a.m. to say that he will be leaving his residence at 12:00 p.m., the Sick Desk member who answered the call would instruct the officer to call again at 12:00 p.m., as Sick Desk personnel are unable to make entries in the out of residence log for a later time. If an officer is leaving home to go to multiple locations, he should call the Sick Desk each time he is leaving one of the locations and going to another. While a sick officer with a pass can go anywhere within the residence counties during pass hours, he can only tend to personal necessities during the rest of the day. While going to the pharmacy is considered a personal necessity, the Sick Desk would not grant permission for an officer to go to the bank or pick up dry cleaning.

The pass that the Respondent received on May 21, 2008 was supposed to be effective until June 13, 2008. Valenti reduced the pass hours on May 28, 2008 because the Respondent was on modified duty assignment and performance monitoring. Valenti did not discuss the changing of the pass hours with the Department surgeon who had initially issued the pass to the Respondent. Although the Respondent was notified of the new pass hours, he was not given a new physical pass. The Respondent was not Chronic Sick in June 2008.

Police Officer Christopher Tenore

Tenore, a 17-year member of the Department, is currently assigned to the 49 Precinct. At approximately 5:15 p.m. on April 10, 2005, he and his partner responded to a job that came over the radio as an assault in progress on White Plains Road. At that location, a woman (subsequently identified as Lourdes Gonzalez) informed them that her boyfriend (subsequently identified as the Respondent), who was a member of the service, had run over her foot with his car. [The boyfriend was subsequently identified as the Respondent.] Gonzalez complained of pain in her foot, and an ambulance was summoned to the scene. A supervisor, Sergeant Thomas Bruen, also responded to the scene. While sitting in the ambulance, Gonzalez spoke on her cell phone with the Respondent. Upon request, Gonzalez gave Tenore the cell phone. Tenore identified himself to the Respondent as a police officer. Tenore proceeded to tell the Respondent that he had been involved in an accident and needed to come back to the location. The Respondent replied that he was arguing with Gonzalez and was not going to return. The telephone then went dead or was disconnected. Although Tenore had informed Bruen that the situation involved an off-duty member of the service, Tenore could not recall if Bruen directed him on what to say to the Respondent. Tenore is a union delegate, but he could not recall if he informed the Respondent of that fact during their telephone conversation.

On cross-examination, Tenore testified that he has reviewed an official Department interview that he gave on the night of the incident, but he cannot independently recall much of what happened on that night. In the interview, Tenore stated that he did not notice any outward injuries on Gonzalez. She walked to the ambulance on her own. Gonzalez told Tenore that she had caught the Respondent with

another woman and ran after his car banging on the windows. Tenore was the only member of the service to talk with the Respondent on the telephone at the scene. He left the scene after his conversation with the Respondent ended. He does not know if any other member of the service waited for the Respondent to return.

Sergeant Thomas Bruen

Bruen, a 28-and-a-half-year member of the Department, is currently assigned to the 49 Precinct. At approximately 5:15 p.m. on April 10, 2005, he responded to the radio run on White Plains Road. Tenore, who was already at the scene, informed him that Gonzalez had confronted her boyfriend about being in the car with another woman. As the boyfriend drove away, the car struck Gonzalez, causing injury. Tenore also informed Bruen that the boyfriend was a police officer. Bruen then spoke with the Gonzalez. Gonzalez gave Bruen the Respondent's name, and she told him that she believed the incident was an accident. At one point, Gonzalez's cell phone rang, and Gonzalez informed the officers that it was the Respondent calling. Tenore answered the call, and Bruen instructed Tenore to tell the Respondent to come back to the scene. Bruen could not recall exactly what Tenore told the Respondent, but Tenore told Bruen after the call ended that the Respondent refused to return. Bruen then went to the station house and notified the duty captain about the incident. At some point later in the night, Bruen went to the Respondent's residence, informed the Respondent that he was being investigated, and told the Respondent that he needed to come to the precinct. The Respondent was compliant.

On cross-examination, Bruen testified that it is possible that Gonzalez answered the telephone when the Respondent called. In any event, Bruen never got on the telephone himself. Bruen saw Gonzalez walk with a slight limp, but he did not observe any other injury. When Bruen went to the Respondent's house, he found the Respondent to be fit for duty.

The Respondent's Case

The Respondent called Enilza Batista as a witness and testified in his own behalf.

Enilza Batista

Batista is currently an unemployed college student in the Bronx. She has dated the Respondent for approximately eight years. On April 10, 2005, the Respondent picked her up at her parents' house and drove her to a pizza shop on White Plains Road. They picked up food and got back in the car, when an irate woman jumped on the driver's side, started hitting the window, and tried to open the door. Batista testified that she had never seen the woman before. As the Respondent slowly drove away, the woman banged on the windshield and then ran behind the car. Batista stated that at no point did she see the car strike the woman or did she hear the woman say anything about getting struck. From the way that the woman was running, it did not appear that the woman was injured. At one point, Batista asked the Respondent who the woman was. The Respondent informed Batista that the woman was Lourdes Gonzalez, the mother of his son.

The Respondent and Batista went to the Respondent's apartment. Finding a parking spot in the area was difficult, so they had to park two long blocks away. After

arriving in the apartment, they got undressed and got ready to eat. The telephone then rang and the Respondent answered it in another room. After the call ended, the Respondent informed Batista that they needed to return to the pizza shop because Gonzalez was alleging that he had run over her foot. Batista thought that this allegation was insane since she had clearly seen Gonzalez run after the car. According to Batista, she and the Respondent got dressed, put the food away, walked back to the car, and drove back to White Plains Road. The ride took 20 to 25 minutes. When they got there, they did not see any police or medical personnel present, so they returned to the Respondent's apartment. Later that evening, on-duty police personnel came to the Respondent's apartment and took the Respondent away.

On cross-examination, Batista testified that she did not hear the Respondent's telephone conversation. When they returned to the pizza shop and saw that nobody was there, the Respondent did not say anything about going to the local precinct. Batista and the Respondent were back in the Respondent's apartment for two or three hours before the police arrived. As far as Batista is aware, at no point during that period did the Respondent attempt to call the local precinct or speak with a delegate.

The Respondent

The Respondent, a 15-year member of the Department, is currently assigned to BCS. He spent most of his career on patrol in the 40 Precinct. Then, in August 2000, he was in a serious Department vehicle accident, resulting in him being placed on medically restricted duty status. The Respondent explained that the accident occurred when another Department vehicle struck the car that he was driving as they were responding to a 10-13

(officer in need of assistance). As a result of the accident, the Respondent sustained a right carpal fracture in his wrist, along with herniated and bulging discs in his neck and back.

The Respondent testified that on the evening of April 10, 2005, while he and Batista were pulling out of a parking spot next to the pizza shop, Gonzalez (his ex-girlfriend) started banging on the window and screaming at him to open the door. It is his understanding that friends of Gonzalez saw him there and informed Gonzalez of his location. According to the Respondent, he remained calm and drove away once he saw he was clear of hitting anything. He is sure that he did not strike Gonzalez with his car. He explained that he would have heard or felt something had he hit her, and it was not possible that he struck her without realizing it. As he drove away, he saw Gonzalez in the rearview mirror running after the car. He observed Gonzalez jogging after the car for a block, and she did not appear to be limping. At no point while he was at the location did he hear Gonzalez allege that she had been struck by the car.

The Respondent drove to his residence, parking two or three blocks away. He and Batista had started eating when he received a telephone call from Gonzalez. Gonzalez told him that he needed to return to the scene because he had run over her foot, and there were police and an ambulance present. The Respondent did not believe Gonzalez, so she put a male (previously identified as Tenore) on the telephone. Tenore told the Respondent that he needed to return to the scene in order to provide insurance information. The Respondent stated, "[Tenore] said a lot of different things that weren't really making sense. So I couldn't believe that [he] was a cop." At no point did anybody

on the telephone identify himself as a sergeant or was the Respondent ordered back to the scene by a supervisor.

After getting off the telephone, the Respondent got dressed, put away the food he had been eating, went back to his car, and drove back to the scene. He brought Batista with him because she was an eyewitness to the incident. When they arrived at the pizza shop 20 to 25 minutes later, there were no signs of emergency vehicles. The Respondent concluded that Gonzalez had been lying about speaking to the police. Later that evening, Bruen came to the Respondent's residence and took him to the 49 Precinct station house. The Respondent was placed on modified duty status. He was never arrested as a result of the incident. According to the Respondent, after the telephone conversation with Tenore, he returned to the scene as fast as possible.

The Respondent testified that the injuries he sustained in the August 2000 accident were designated line-of-duty injuries. The injuries led to the Respondent getting spinal surgery in September 2006. Both before and after the surgery, he was prescribed to attend physical therapy. In order to go to doctor appointments and physical therapy sessions while on duty, he needed to get authorization from the Medical Division. He explained that he would first have to go to the medical district in the Bronx to have a Department surgeon sign authorization paperwork. Then he would take the paperwork to the Medical Division in Lefrak, where he would get it signed by the head surgeon or the orthopedic surgeon. According to the Respondent, the final authorization came from the Medical Division billing department, which was on a separate floor of Lefrak. While there were sign-in sheets to see the surgeons, there was not a sign-in sheet at the billing department. The authorization paperwork had to be handled in person. It could not be

faxed to the Medical Division for processing. The Respondent was authorized to go to the billing department while on duty. One authorization was good for two or three sessions of physical therapy per week for a one-month period. After that period was up, the Respondent would have to go back to the surgeon for a new evaluation for a new authorization.

Prior to his surgery, the Respondent attended approximately 200 sessions of physical therapy. While he was authorized to go to physical therapy while on duty, not all of the 200 sessions took place while he was at work. Sometimes he would go to physical therapy after work or on his regular days off, depending on the pain that he was experiencing. The Respondent testified that when he did plan on going to physical therapy or a doctor's appointment while on duty, he would let a supervisor know about the appointment time and date, and the supervisor would relay that information to roll call personnel. In 2006 and 2007, he would leave the command to handle medical issues two or three days a week. At least once every two weeks, he would ask a supervisor for permission to go to an appointment, but his request would be denied due to inadequate manpower.

On January 19, 2007, the Respondent was summoned by the Investigations Unit for an official Department interview. He was not given any advance notice about what the interview was going to be about. At the interview, the investigators asked him about his location on certain dates. At the time, the Respondent did not have any independent recollection of his whereabouts on the dates in question. He was, therefore, unable to answer the investigators' questions with any specificity. The Respondent did not think he had ever been absent without leave. After he was subsequently served with Department

charges, he called every doctor he had seen for his injuries to get a record of his appointment dates. He also collected the record of the dates on which he went to physical therapy, his hospital records, and his E-Z Pass statements that indicated when he crossed the bridge going to and from Lefrak. It took a few months to gather all of this data. When he was finished, he presented it all to the Department Advocate's Office.

The Respondent testified that it was BCS supervisors who maintained the logs at the desk. Before leaving the command to go to an appointment, he would tell whichever supervisor was working at the desk where he was going. At no point was he in a position to verify what the supervisors wrote in the logs. The Respondent had authorization to go to the Medical Division, physical therapy, and his outside doctors. It was his understanding that so long as the command had adequate manpower, he was free to go to any of those locations. According to the Respondent, he never told a supervisor that he was at one location when he was actually at another.

The Respondent testified that when he left BCS at 11:35 a.m. on January 5, 2006, he went to the medical district in the Bronx to get authorization from Doctor Pasquale to get surgery. He then brought the authorization paperwork to the Medical Division in Lefrak to get it processed by the billing department. He reiterated that there is no sign-in sheet at the billing department. After leaving Lefrak, the Respondent crossed back over the Triborough Bridge into the Bronx and attended physical therapy, which did have a sign-in sheet for him to enter his name. At physical therapy, the Respondent received hot and cold packs and electrical stimulation. He then called the command and informed them that he was going end of tour from physical therapy. It was the Respondent's understanding that he was permitted to go to the Bronx medical district, the Medical

Division billing department, and physical therapy while on duty. At no point on that day did a supervisor tell him that he could not go to any of those places due to inadequate manpower. [Respondent's Exhibit (RX) A contains a worksheet prepared by the Respondent's physical therapist, indicating evaluations of the Respondent on January 5 and January 19, 2006. RX A also contains a worksheet and bill for physical therapy treatments received by the Respondent on January 5, 2006; the E-Z Pass statement, which shows Triborough Bridge crossings at 12:05 p.m. and 2:12 p.m.; the physical therapy sign-in sheet with the Respondent's signature on it; and the Request for Medical Service Authorization form prepared by Pasquale.]

The Respondent testified that when he left BCS at 11:00 a.m. on January 19, 2006, he went to Lefrak to submit authorization paperwork to Reich. The authorization paperwork is dated January 20, 2006, but the Respondent testified that this is because it took a day for his authorization request to be approved. The Respondent could not provide an explanation for why his name did not appear in the sign-in book on January 19. (His name did appear in the sign-in book for January 20, according to the Respondent, because he returned to the Medical Division that day to pick up the approved authorization and bring it to the billing department.) After leaving the Medical Division, he went to physical therapy. [RX B consists of a bill for physical therapy treatments received by the Respondent on January 19, 2006 and an E-Z Pass statement, which shows a Triborough Bridge crossing at 11:44 a.m. on that day. It also contains the authorization paperwork, date stamped January 20, 2006.]

The Respondent testified that on January 27, 2006, he went to the Medical Division in Lefrak, where he met with Miller about getting authorization to see Camins.

After getting approval from Miller, he went to see a doctor at Park East Sports for a consultation on epidural shots. He explained that he was experiencing pain at the time and wanted to get epidural shots to alleviate it. Tests were conducted on him, and the doctor determined that the Respondent could not receive shots that day because he had a fever. According to the Respondent, he was authorized by the Department to go to that appointment. [RX C contains a Request for Medical Service Authorization form, on which it is written in the notes section that the Respondent "was seen by Miller on January 27, 2006." It also contains a list of appointments that the Respondent had at Park East Sports. The list, which was computer-generated by the medical facility, indicates that the Respondent had an appointment at 2:30 p.m. that day.]

The Respondent testified that he went to see Camins on February 2, 2006, a doctor's appointment for which he had Department authorization. According to the Respondent, he did not on this date nor on any other date tell the roll call personnel at his command that he was going to a location other than the place he was actually going. Similarly, he never called the command to say that he was going end of tour from a location other the place he was actually located. [RX D is a copy of a letter from Camins, dated May 18, 2006. The letter indicates that Camins saw the Respondent in neurosurgical consultation on February 2, 2006.]

The Respondent testified that on March 15, 2006, he went to Lefrak and met with Reich to get authorization paperwork approved. After getting approval from Reich, he went to the billing department. According to the Respondent, he was at the Medical Division the entire day. He explained that at the Medical Division it takes one to three hours of waiting before a patient is called in for his appointment. [RX E consists of an

E-Z Pass statement, which shows Triborough Bridge crossings at 10:38 a.m. and 6:25 p.m. on March 15, 2006; and a Request for Medical Service Authorization form, which is date stamped March 15, 2006 next to Reich's signature. It also contains medical authorization forms (both dated March 15, 2006) for the Respondent to attend physical therapy and go to a neurosurgeon follow-up visit. These computer-generated forms contain billing account information.]

The Respondent testified that on May 15, 2006, he signed in for physical therapy and waited to be called for his session. He returned to his command upon learning that the therapist would not be coming to work. [RX F consists of the physical therapy sign-in sheet for May 15, 2006, and the BCS interrupted patrol log for that day. The Respondent's name appears in the log at 12:20 p.m. and 1:05 p.m.]

The Respondent testified that on February 13, 2006, he left his command at 6:15 a.m. in order to be at physical therapy at 7:00 a.m. (the time therapy sessions began in the mornings). According to the Respondent, there were times that he waited an hour or two for physical therapy before the therapist called in to say that she was not coming in to work. [RX G consists of the physical therapy sign-in sheet for February 13, 2006, and a therapy verification sheet that the Respondent submitted to his ICO. On the verification sheet, February 13 is one of the twelve dates listed for therapy sessions.]

The Respondent testified that he went to physical therapy on March 2 and March 27, 2006. [RX H consists of the physical therapy sign-in sheet for March 2, 2006 and a worksheet prepared by the Respondent's physical therapist. The worksheet indicates that the Respondent had a therapy session on that day. RX I consists of these same materials for March 27, 2006.]

The Respondent testified that he never used time that he was supposed to be at physical therapy or the Medical Division to do anything that was not approved by the Department. Similarly, he never told people that he was at the Medical Division when he was actually at physical therapy. At all times, he told his supervisors where he was going and where he was signing out from. On September 5, 2006, the Respondent spent the entire day undergoing tests at Lenox Hill Hospital. He never told anybody that day that he was going to physical therapy.

A couple of years ago, the Respondent's entire left side went numb and he lost vision in his left eye. He was ultimately diagnosed with multiple sclerosis, spent approximately a week in the hospital, and was out of work for three months. The Department surgeon gave the Respondent a pass to be out of residence for 12 or 14 hours a day. The Respondent did not recall this pass being recalled or canceled. June 10, 2008 fell within the period that the Respondent was out sick. On that day, he called the Sick Desk and got permission to go to the pharmacy. He then waited an hour or two before actually leaving home to go to the pharmacy. The Respondent explained that he called the Sick Desk so early because, every time that he had called, either nobody picked up or there was a busy signal. He, therefore, started calling in ahead of time and repeatedly called until he succeeded in getting through to somebody. When he did leave for the pharmacy, he realized that he had forgotten his prescription and had to return home to pick it up. After picking up the prescription, he left again for the pharmacy. He was on his way to the pharmacy when he received a telephone call from the Medical Division. He stated in the telephone conversation that he was at the pharmacy, even though he was actually still a few blocks away.

On cross-examination, the Respondent testified when he spoke with Tenore on April 10, 2005, Tenore told him that he was a police officer and a delegate. Tenore also told him to return to the scene. The Respondent stated that he did not believe Gonzalez's allegation of injury or that Tenore was a member of the service. He believed at the time that Gonzalez was merely attempting to get him back to the location to have a confrontation. When the Respondent did return to the pizza shop and saw no one there, he did not go to the 49 Precinct station house or call his union about the incident.

The Respondent testified that since he did not sign in upon his arrival at Lefrak on January 5, 2006, he must have gone to the billing department. He explained that he brought the authorization paperwork to the billing department, not a Department surgeon at Lefrak, because he had already gotten authorization from his Department surgeon at the Bronx medical district. According to the Respondent, he always called his command to let it be known when he was leaving the Medical Division and going to physical therapy. There should have, therefore, been a command log entry indicating when he left Lefrak for physical therapy. The Respondent stated that he did not receive chiropractic care while on duty that day.

The Respondent reiterated that he went to Lefrak on January 19, 2006 to drop off authorization paperwork with Reich. When asked why he would not have signed in at the Medical Division on that day, the Respondent replied, "I guess I didn't sign in to drop off paperwork."

The Respondent reiterated that he went to see Miller at the Medical Division on January 27, 2006, but he conceded that his name did not appear on the sign-in sheet to

see Miller on that day. [DX 13 is a copy of the sign-in sheet.] The Respondent did not supply the Department with E-Z Pass records for that day.

The Respondent reiterated that he had an appointment with Camins on the morning of February 2, 2006. The Respondent could not recall how long that appointment lasted. He then drove from Camins' office in Manhattan to physical therapy in the Bronx. He signed in at physical therapy and waited for his session. He could not recall how long he was at physical therapy. The Respondent stated that he was not certain if he also received chiropractic treatment that day.

The Respondent reiterated that he met with Reich to get authorization paperwork approved on March 15, 2006. He was also examined by Reich on that day. The Respondent could not recall how long he was at Reich's office.

The Respondent reiterated that he went to physical therapy on May 15, 2006 and returned to his command as soon as he learned the therapist would not be coming in. According to the Respondent, it takes approximately an hour to drive from physical therapy to BCS. He informed his command that the therapy session did not take place.

The Respondent reiterated that he went to physical therapy on February 13, 2006, but he did not actually have a therapy session. He did receive chiropractic care on that day. According to the Respondent, most of the time that he went to physical therapy at the end of a midnight tour, he would not get out of therapy until after 8:00 a.m. (his scheduled end of tour).

When asked why the Department was not billed for his March 2 and March 27, 2006 physical therapy session, the Respondent stated, "You can speak to the therapist. She re-billed everybody because since the Department caught those dates that the

Department wasn't billed, [the therapist] said thank you. Now you will be billed." The Respondent could not recall the therapist's name or the date that he spoke with her about billing errors. [The parties subsequently stipulated that no physical therapy bills were ever submitted for the dates in question.]

The Respondent testified that he could not recall telling Garguilo on June 10, 2008 that he had been waiting at the pharmacy for two hours. When he returned home that day, he tried to call the Sick Desk. Nobody answered the call. He did not succeed in reaching anybody at the Sick Desk until 1:45 p.m.

FINDINGS AND ANALYSIS

Disciplinary Case No. 81454/05

The Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency or discipline of the Department in that he refused to immediately return to the scene of an accident where he unknowingly ran over Gonzalez's foot after he was requested to do so by the responding officer. Gonzalez (the mother of the Respondent's child) admitted to Tenore (the responding officer) that she ran after the Respondent's car, banging on the windows. According to Gonzalez, the Respondent accidentally ran over her foot as he was driving away. While at the scene, Tenore spoke with the Respondent on the telephone. Tenore identified himself as a police officer and told him to return to the location. According to Tenore, the Respondent indicated that he would not return to the scene and then hung up.

The Respondent explained that he did not believe at the time of his telephone conversation with Tenore that he had run over Gonzalez's foot or that Tenore was a

police officer. The Court finds the Respondent's explanation to be credible. It is important to note here that this Court is in no position to determine whether or not contact with Gonzalez's foot ever took place. Even assuming, however, that the Respondent did actually run over her foot, he ran over it so slightly that Gonzalez suffered minor to no injury, and she was able to continue running after the car. (Although Bruen observed Gonzalez walk with a slight limp, Tenore did not notice any injuries at all. Moreover, Gonzalez was able to walk to the ambulance on her own.) In this light, it is easy to see how the Respondent might not have even noticed running over Gonzalez's foot. It, thus, becomes understandable why the Respondent would be skeptical upon receiving a call from a stranger claiming to be a police officer at the scene of an accident involving Gonzalez. The Respondent merely believed that it was a plan concocted by Gonzalez to get him back to the location for a confrontation. Yet, in spite of his skepticism, the Respondent proceeded to get dressed, walk two blocks to his car, and drive approximately 20 minutes back to the scene. By the time he got there, no evidence of an ambulance or responding Department vehicles remained. For the Respondent, this likely confirmed his belief that Gonzalez had been lying about the entire incident. He, therefore, saw no reason to pursue the matter further.

Based on the foregoing, the Court does not see how the Respondent did anything wrong. Accordingly, he is found Not Guilty.

Disciplinary Case No. 83093/07

When the Respondent got into a serious car accident while responding to an officer in need of assistance, he suffered a wrist fracture, along with herniated and

bulging discs in his back and neck. Because these injuries were sustained while on duty, Department policy allowed him to tend to the injuries while at work. The Department has charged the Respondent with taking advantage of this policy on numerous occasions:

Specification No. 3

The Respondent was initially charged with being absent from his assignment without permission or police necessity for his entire tour on September 5, 2006. Hudnell explained that she substantiated this charge because BCS log entries indicated that the Respondent was at physical therapy, but there was no evidence of him actually being at physical therapy on that day. The Respondent subsequently provided medical records showing that, instead of going to physical therapy, he was at Lenox Hill Hospital getting pre-operation treatment. Billing records confirmed the hospital visit. Once this information came to light, Bolte unsubstantiated this allegation against the Respondent. The Department has moved to dismiss this charge.

Because the evidence shows that the Respondent was at the hospital on the day in question, and it is unanimously agreed that he was authorized to be there, the Court recommends that the Department's motion to dismiss be granted.

Specification No. 1

The Respondent stands charged with, while assigned to perform a 7:37 a.m. by 4:00 p.m. tour, being absent from his assignment on six occasions without permission or police necessity for a total of 24 hours and 30 minutes.

January 5, 2006

The Respondent is accused of being absent from his assignment from 11:45 a.m. until 4:00 p.m. While it was entered in the BCS roll call that the Respondent was post

changed to the Medical Division in Lefrak during that period, the investigation showed that the Respondent did not have an appointment to see any doctor there, and his name did not appear on any sign-in sheet. Records show that the Respondent received both physical therapy and chiropractic care on that day.

The Respondent testified that when he left BCS, he went to the medical district in the Bronx to get authorization paperwork signed by a surgeon. He then brought that paperwork to the Medical Division billing department in Lefrak, and then he went to physical therapy. According to the Respondent, he always notified his command when he was leaving the Medical Division and going to physical therapy.

The Respondent's visit to the Bronx medical district was confirmed by a dated Request for Medical Service Authorization form prepared by Pasquale, and an explanation that he could not sign in at the billing department because there is no sign-in book there was confirmed by Hudnell. Hudnell even testified that because there is no sign-in book at the billing department, it is difficult to figure out when somebody visited there. Although the E-Z Pass statements provided by the Respondent do not specify which direction he was driving over the bridge, the fact that he crossed the Triborough Bridge once at 12:05 p.m. and again at 2:12 p.m. support his claim that he drove from the Bronx to the Medical Division in Queens and then back again. It was not disputed at trial that the Bronx medical district, the Medical Division in Lefrak, and the physical therapist were all locations that the Respondent had authority to visit. Based on the evidence provided by the Respondent, therefore, the Court does not understand why the Department moved to dismiss the allegation of misconduct pertaining to September 5 but opted to go forward with this date.

Hudnell's problem with the Respondent's conduct seemed to be that the Respondent was given permission from his command to go to the Medical Division, not to go to physical therapy. She later testified, however, that she was unaware of any instance where the Respondent requested to go to physical therapy and was denied. Meanwhile, Bolte's problem with the Respondent seemed to be that he was gone from his command for too long. The Court does not agree with this assessment, given the fact that the Respondent went to three authorized locations in two different boroughs. Furthermore, Bolte conceded that it would not have been inappropriate for a supervisor to tell the Respondent at the start of tour to handle what was needed to get done at the Medical Division before going to physical therapy. At no point during the investigation did Bolte speak with any BCS supervisors about assignments that they gave the Respondent.

Bolte also raised the issue of the Respondent being responsible for inaccurate roll call and command log entries. The Respondent explained that when he planned on going to a doctor's appointment or physical therapy while on duty, he would let a supervisor know about the appointment time and date, and the supervisor would relay that information to roll call personnel. As for the command log, it was maintained by supervisors at the desk. Hudnell confirmed that the Respondent would not have made roll call or command log entries himself, and she even testified that it is not a police officer's responsibility to check if entries made by a supervisor were accurate. At no point did Hudnell or Bolte speak with any BCS supervisor that might have made the relevant entries. Moreover, in reference to the September 5, 2006 allegation, Bolte conceded that the Respondent might have told his command that he was going to one

place only to have the person he notified enter the wrong location in the logs. It seems natural that this testimony could have been given in reference to any and all of the dates in question in this case. This is especially true since, during that timeframe, the Respondent was leaving the command to go to a doctor's appointment, the Medical Division, or physical therapy two to three times each week. Even Bolte agreed that after the Respondent went to physical therapy more than 200 times, it was possible that whomever the Respondent notified at the command just wrote "physical therapy" next to his name whether or not that was accurate. Furthermore, as mentioned above, all of the locations visited by the Respondent were authorized. In other words, he had no motive to say he was going to one of the locations when he was really going to another.

As for the visit to the chiropractor, it is true that the Respondent did not have authorization to get treatment while on duty. Because the records from the chiropractor do not indicate specific times of treatment, however, it cannot be known if the Respondent received his chiropractic treatments before or after his tour ended.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to January 5, 2006.

January 19, 2006

The Respondent is accused of being absent from his assignment from 11:00 a.m. until 4:00 p.m. While it was entered in the BCS logs that the Respondent was post changed to the Medical Division, there is no record of him actually being there. The Respondent explained that while he did go to Lefrak to submit an authorization form to Reich, he might not have signed in there because he was only dropping off paperwork. This explanation is supported by the Respondent's E-Z Pass statement, which shows a

Triborough Bridge crossing at 11:44 a.m. The Respondent has not been charged with failing to sign-in at the Medical Division.

Records show that the Respondent also went to physical therapy that day at some point between 1:00 p.m. and 5:00 p.m. Although this was not entered in the BCS logs (over which he had no control), this Court will not hold him responsible for what easily could have been mistaken or omitted log entries made by somebody else. As discussed above, he had no motive to pretend he was going somewhere else when he was really going to physical therapy, a location for which he had authorization. Similarly, as discussed above, although the Respondent received chiropractic care on that day, it is impossible to know if he got the chiropractic treatment while on duty.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to January 19, 2006.

February 2, 2006

The Respondent is accused of being absent from his assignment from 11:00 a.m. until 4:00 p.m. While it was entered in the BCS command log that the Respondent was post changed to a doctor's office on East 88 Street in Manhattan, the roll call showed him going end of tour from physical therapy. Although the Respondent had authorization to go to both the doctor and physical therapy, Hudnell was under the belief that the Respondent failed to inform a supervisor and get permission to go to both of these locations. Because BCS supervisors were not interviewed as part of the investigation, however, we do not know if this was actually the case. The fact that the BCS logs do not specifically indicate that he notified the command beforehand of both destinations is not indicative of misconduct on his part. Finally, the Respondent did receive chiropractic

care on that day, but the Court's view on the chiropractic records has already been established.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to February 2, 2006.

March 15, 2006

The Respondent is accused of being absent from his assignment from 12:15 p.m. until 4:00 p.m. While it was entered on the roll call that the Respondent was post changed to the Medical Division at 9:45 a.m. and went end of tour from physical therapy, the Medical Division sign-in sheet showed him being there from only 11:15 a.m. until 12:15 p.m. with no record of physical therapy taking place later in the day.

The Respondent testified that he was at the Medical Division all day. According to the Respondent, after being examined and getting authorization paperwork signed by Doctor Reich, he went to the billing department. As discussed above, the Respondent had authorization to be at the Medical Division, there was no way for him to sign in at the billing department since no sign-in book exists there, and he will not be held responsible for what easily could have been a mistaken log entry about physical therapy made by somebody else. As has been noted, the Respondent had no motive to tell his command he was at physical therapy when he was really at the Medical Division since he had authorization to be at both locations.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to March 15, 2006.

May 15, 2006

The Respondent is accused of being absent from his assignment from 7:45 a.m. until 10:05 a.m. While it was entered on the roll call that the Respondent was post changed to physical therapy, there is no record of him having a therapy session on that day. The Respondent explained that he went to physical therapy, signed in for his session, waited for his session, and then returned to his command upon learning that the therapist would not be coming to work. According to the Respondent, there were times that he waited an hour or two for physical therapy before the therapist called in to say that she was not coming in to work.

Bolte testified that the Respondent's physical therapists were not interviewed as part of the investigation. Meanwhile, the Respondent provided a copy of the physical therapy sign-in sheet to support his version of events. In the absence of any evidence to the contrary, the Court finds this version to be credible. Between the travel time to and from the therapist's office and the time spent waiting in the office, it is plausible that the Respondent would be gone from the command for a period of two hours and 20 minutes.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to May 15, 2006.

January 27, 2006

The Respondent is accused of being absent from his assignment from 11:45 a.m. until 4:00 p.m. While it was entered on the roll call that the Respondent was post changed to the doctor's office on East 88 Street, the Respondent testified that he first went to the Medical Division to meet with Doctor about authorization paperwork. Although there is no record of the Respondent signing in at the Medical Division, the

Court believes that he was there, as the visit is supported by a dated Request for Medical Service Authorization form. As with all the dates in this case, the Respondent had authorization to be there.

According to the Respondent, after leaving Lefrak, he did go to the doctor on East 88 Street to get epidural shots. While the receptionist at the doctor's office told Hudnell that the Respondent did not appear for his scheduled 2:30 p.m. appointment, the Respondent testified that he did appear for his appointment but was unable to receive treatment because he had a fever.

The Court has left this date for last because, of all the dates in question, this is the only one that the Department has succeeded in casting doubt on the Respondent's location. There is no apparent reason why the doctor's receptionist would lie to a police investigator about whether or not the Respondent was present at the office. And, if the Respondent was not at the office, then where was he? In the absence of any sort of logical explanation or corroborating documentation from the Respondent, the Court finds that the Department has proven by a preponderance of the evidence that he was at an unauthorized location for a portion of his tour on this day. Because it is unknown how long he was at the Medical Division, it is unclear exactly how long he was absent from his assignment after leaving Lefrak. On March 15, 2006, it took the Respondent two and a half hours to drive from his command to the Medical Division, get examined by Reich, and get authorization paperwork signed by the doctor. Assuming that it took approximately the same amount of time for the Respondent to accomplish these same tasks on January 27, it would mean that his period of absence began at 2:15 p.m.

Accordingly, the Respondent is found Guilty of this Specification as it pertains to the period between 2:15 p.m. and 4:00 p.m. on January 27, 2006.

Specification No. 2

The Respondent stands charged with, while assigned to perform 11:37 p.m. by 8:00 a.m. tour, being absent on three occasions for a total of five hours and five minutes.

February 13, 2006

The Respondent is accused of being absent from his assignment from 6:15 a.m. until 8:00 a.m. While it was entered on the roll call that the Respondent was post changed to physical therapy, there is no record of him having a therapy session on that day. The Respondent explained that (as on May 15, 2006) he went to physical therapy, signed in for his session, waited for his session, and then returned to his command upon learning that the therapist would not be coming to work. The Respondent provided a copy of the physical therapy sign-in sheet to support his version of events. Again, the Court finds this version to be credible, given the Respondent's travel and wait times. The Respondent received chiropractic care on that day, but the Court's view on the chiropractic records has been discussed above.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to February 13, 2006.

March 2 and March 27, 2006

The Respondent is accused of being absent from his assignment from 6:25 a.m. until 8:00 a.m. on March 2, 2006 and from 6:15 a.m. until 8:00 a.m. on March 27, 2006. On both of these dates, it was entered on the roll call that the Respondent was post changed to physical therapy, but no bill for physical therapy was generated. The

Respondent explained that he received therapy on those days, and the therapy center must have erroneously failed to bill for it. The Respondent provided a copy of the physical therapy sign-in sheet and a worksheet prepared by his therapist to support his testimony. In light of this corroborating evidence, the Court accepts the Respondent's version of events as truthful. The fact that the Respondent went to the chiropractor on March 2, 2006 is irrelevant.

Accordingly, the Respondent is found Not Guilty of this Specification as it pertains to March 2 and March 27, 2006.

Specification No. 4

The Respondent stands charged with wrongfully causing false entries to be made in Department records on nine occasions in that he caused entries to be placed in the command log that indicated he went to the Medical Division and/or Department-authorized physical therapy when, in fact, he did not appear at those locations. Bolte testified that a major part of the investigation and substantiation of charges in this case was based on what was written down in the log book.

As discussed above, the Respondent would not have made command log entries himself, and it was not his responsibility to ensure that entries made by supervisors were accurate. The fact that the Respondent had authorization to go to physical therapy, the Medical Division, and outside doctors meant that he had no motive to lie when he went to any of these places. Given the frequency with which he was leaving the command to go to injury-related appointments, it is more likely that a supervisor simply made a mistake when making log entries. Since Hudnell or Bolte never interviewed anybody at BCS

who had control over the log and may have made the pertinent entries, the Court is willing to assume that that is what occurred.

Accordingly, the Respondent is found Not Guilty of this Specification.

Disciplinary Case No. 84621/08

Specification No. 1

The Respondent stands charged with causing false entries to be made in Department records in that he called the Absence Control Division at approximately 8:50 a.m. and stated that he was going to the pharmacy when, in fact, he did not go to the pharmacy until 12:15 p.m. While the Respondent called the Sick Desk at 8:52 a.m. and had entered in the out of residence log that he was going to the pharmacy, Garguilo learned from the pharmacist that the Respondent did not appear there until approximately 12:15 p.m. The Respondent explained this discrepancy by claiming that he called the Sick Desk an hour or two before leaving home because nobody at the Sick Desk ever picked up the telephone or there was a busy signal. He, therefore, called in ahead of time and repeatedly called until he succeeded in getting through to somebody. The Respondent added that once he left home, he had to go back and forth to the pharmacy twice because he forgot to bring his prescription the first time.

Even if the Respondent is taken at his word, the Court finds the conduct he described problematic. While it is not uncommon for sick members of the service to have difficulty reaching somebody at the Sick Desk, calling in ahead of time is not an option. The purpose of the out of residence log is for sick members to report to the Department their whereabouts at specific times, and, by calling in ahead of time, a

member will cause false entries to be made in the log. If the Respondent was having problems reaching the Sick Desk, according to Garguilo, he could have called his command instead to get his time and location documented there. In the alternative, according to Valenti, the Respondent could have also directly called the Absence Control and Investigations Unit, the Special Medical District, or the supervisor who was assigned to visit him at home. More realistically, assuming that the trip to the pharmacy was not an emergency, the Respondent could have started calling the Sick Desk when he actually intended on leaving home and redialed until someone answered. And, most easy of all, he could have waited until after 2:00 p.m., which is when his out of residence pass period began. (While on the subject of the out of residence pass, the Respondent's attorney seemed to suggest that perhaps the Respondent was confused over the pass hours since the pass period had recently been shortened. The fact that the Respondent called the Sick Desk at all, however, is proof of his awareness that the trip to the pharmacy was taking place outside of pass hours.)

Accordingly, the Respondent is found Guilty of Specification No. 1.

Specification No. 2

The Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he made false and misleading statements to Garguilo when he stated that he was in a pharmacy for approximately two hours waiting for a prescription to be processed when, in fact, that was not true. While the Respondent told Garguilo on the telephone at 11:50 a.m. that he had been waiting at the pharmacy for a couple of hours, Garguilo learned from the pharmacist that the Respondent did not call in the prescription until approximately 12:07 p.m. Then, at trial,

the Respondent testified that when he told Garguilo in their telephone conversation that he was at the pharmacy, he was actually still on his way there.

Once again, even if the Respondent is taken at his word, his version of the incident does not add up. It would have been one thing if the Respondent had merely told Garguilo that he was at the pharmacy when, in reality, he was still a few blocks away. It was quite another thing, though, for the Respondent to state that he had been waiting at the pharmacy for a couple of hours when, in fact, he had not even gotten there yet. The Respondent's location during that two-hour period is not at issue in this case. No matter where he was located, the statement that he gave to Garguilo on the telephone that day was clearly misleading.

Accordingly, the Respondent is found Guilty of Specification No. 2.

PENALTY

In order to determine an appropriate penalty the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y. 222 (1974).

The Respondent was appointed to the Department on April 30, 1995. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

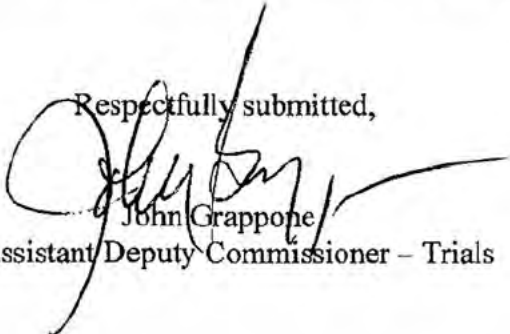
The Respondent has been found Guilty of being absent from his assignment for a period of approximately one hour and 45 minutes; causing false entries to be made in the out of residence log by reporting at approximately 8:50 a.m. that he was going to the pharmacy when, in fact, he did not go there until 12:15 p.m.; and engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department by making

false and misleading statements to Garguilo when he stated that that he was at the pharmacy for approximately two hours waiting for a prescription to be processed when, in fact, that was not true.

In Disciplinary Case No. 81262/05, an eighteen-year member with no prior disciplinary record forfeited ten vacation days for being off post on two occasions, totaling a period of approximately a half hour. In Disciplinary Case 76700/01, a nine-year member with no prior disciplinary record forfeited 20 vacation days for telling Sick Desk personnel that he was at home when he was actually upstate. In Disciplinary Case 80315/04, a twelve-year member with no prior disciplinary record forfeited 18 vacation days for placing himself in the out of residence log as going to the supermarket when he actually went to the gym. In Disciplinary Case Nos. 81241/05 & 81551/06, a ten-year member with no prior disciplinary record forfeited 35 vacation days for twice telling Sick Desk personnel that he was going to the pharmacy when he was actually going elsewhere. In addition, he was absent from his residence without permission on four occasions and engaged in unauthorized off-duty employment as a construction worker. In Disciplinary Case No. 83162/07, a five-year member with no prior disciplinary record forfeited 25 vacation days for telling the Sick Desk that he was in Manhattan when he was actually in Florida.

Based on the foregoing, it is recommended that the Respondent forfeit a penalty of 30 vacation days.



Respectfully submitted,

John Grappone
Assistant Deputy Commissioner – Trials

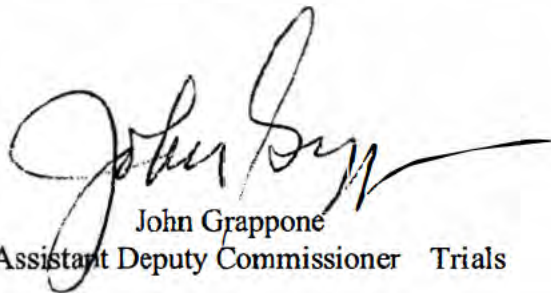
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER RICARDO COLON
TAX REGISTRY NO. 914725
DISCIPLINARY CASE NOS. 81454/05, 83093/07 & 84621/08

In 2009, the Respondent received an overall rating of 4.0 "Highly Competent" on his annual performance evaluation. He was rated 4.5 "Extremely Competent/Highly Competent" in 2007 and 2008. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] The Respondent has no prior formal disciplinary record. Based on his overall record, he was placed on Level-II Discipline Monitoring in September 2007.

For your consideration.


John Grappone
Assistant Deputy Commissioner Trials